

# Justification and Approval Notice

**SUBJECT\*** Replace Coils in Building 4

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## GENERAL INFORMATION

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|---------------------------------------|------------------------------------------------------------------------------------------------------------------------------------|
| <b>CONTRACTING OFFICE'S ZIP CODE*</b> | 26301-4199                                                                                                                         |
| <b>SOLICITATION NUMBER*</b>           | 36C24525P0463                                                                                                                      |
| <b>DELIVERY/TASK ORDER NUMBER</b>     | 36C24525P0463                                                                                                                      |
| <b>BASE NOTICE TYPE</b>               |                                                                                                                                    |
| <b>ARCHIVE</b>                        | 30 DAYS AFTER THE RESPONSE DATE                                                                                                    |
| <b>RECOVERY ACT FUNDS</b>             | N                                                                                                                                  |
| <b>PRODUCT SERVICE CODE*</b>          | Z1DA                                                                                                                               |
| <b>NAICS CODE*</b>                    | 236220                                                                                                                             |
| <b>CONTRACTING OFFICE ADDRESS</b>     | Department of Veterans Affairs<br>Louis A Johnson, VAMC<br>Contracting Office (90C)<br>1 Med Center DR<br>Clarksburg WV 26301-4199 |
| <b>POINT OF CONTACT*</b>              | CONTRACTING OFFICER<br>ALISON KLEIN<br>ALISON.KLEIN@VA.GOV<br>304-623-3461 X 4143                                                  |

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## AWARD INFORMATION

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|-----------------------------|-------------------------------------------------|
| <b>STATUTORY AUTHORITY*</b> | FAR 6.302-5 - Authorized or required by statute |
| <b>AWARD NUMBER*</b>        | 36C24525P0463                                   |
| <b>MODIFICATION NUMBER</b>  |                                                 |
| <b>AWARD AMOUNT*</b>        | \$11,902.00                                     |

**\*= Required Field**

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|                          |                                     |
|--------------------------|-------------------------------------|
| LINE ITEM NUMBER         | 1                                   |
| AWARD DATE (MM-DD-YYYY)* | 04-03-2025                          |
| AWARDEE NAME*            | DISTRICT VETERANS CONTRACTING, INC. |
| CONTRACTOR'S UEI         | Z9KLX6KTM5J5                        |
| AWARDEE ADDRESS LINE 1*  |                                     |
| AWARDEE ADDRESS LINE 2*  |                                     |
| AWARDEE ADDRESS LINE 3*  | 5772 2ND ST NE                      |
| AWARDEE ADDRESS LINE 4*  |                                     |
| AWARDEE CITY             | WASHINGTON                          |
| AWARDEE STATE            | DC                                  |
| AWARDEE ZIP CODE         | 20011                               |

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### ADDITIONAL INFORMATION

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|--------------------------------|-----------------------------------------------------|
| AGENCY'S URL                   | <a href="https://www.va.gov">https://www.va.gov</a> |
| URL DESCRIPTION                | Department of Veteran Affairs                       |
| AGENCY CONTACT'S EMAIL ADDRESS |                                                     |
| EMAIL DESCRIPTION              |                                                     |

# Justification and Approval Notice

## DESCRIPTION

### DEPARTMENT OF VETERANS AFFAIRS

#### Justification and Approval (J&A)

#### For

#### Other Than Full and Open Competition

Acquisition Plan Action ID: 36C245-25-AP-2450

1. **Contracting Activity:** Department of Veterans Affairs, Network Contracting Office 5
2. **Nature and/or Description of the Action Being Approved:**  
819.7008 Sole source award to a certified service-disabled veteran-owned small business
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** Contractor shall furnish all labor, materials, equipment, and supervision necessary to perform general construction to replace the failed HVAC coil(s) in building 4 at the Hershel "Woody" Williams VA Medical Center Huntington, West Virginia
4. **Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#)- up to \$5,000,000. Check the specific VAAR clause used below:  
  
( X ) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business;  
Or  
( ) 819.7009 Sole source awards to a certified veteran-owned small business
5. **Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** The contracting officer has the authority to award sole source awards to SDVOSB based on 38 U.S.C. 8127(c) and that the SDVOSB concern has been determined to be a responsible source with respect to performance and meets the requirements stated in 819.7003(DEVIATION).
6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:** The contractor was the original contractor who installed the fan coil units that burst not due to warranty issues. Building is still under warranty except those fan coils due to a lack of proper care that was exercised during the winter. Note: The system was custom made for the building.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The independent government estimate is 11% higher than the contractor's proposal.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Contractor is listed in SBA VetCert.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** None
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** None

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**11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:**

Once the warranty of construction completed on the building has expired unless emergent, will be competed in the future.